

[20 & 21 GEO. 5.] *London County Council
(General Powers) Act, 1930.*

[Ch. clix.]



CHAPTER clix.

An Act to confer further powers upon the London County Council and upon the corporation of the city of London and metropolitan borough councils to amend the Acts relating to the establishment of superannuation funds by the councils of certain metropolitan boroughs and for other purposes. A.D. 1930.
[1st August 1930.]

WHEREAS it is expedient that the London County Council (hereinafter referred to as "the Council") should be empowered to acquire compulsorily the lands described in this Act as intended to be so acquired and that the other powers by this Act conferred upon the Council should be granted:

And whereas it is expedient in the interests of the safety of the public that the provisions of this Act with reference to premises in the administrative county of London used for public boxing should be enacted:

And whereas it is expedient that the provisions contained in this Act with reference to the conditions of appointment and remuneration of the clerk of the peace for the county of London and his staff and of employees of the standing joint committee for the said county should be enacted:

And whereas by the Stepney Borough Council (Superannuation) Act 1905 the Bethnal Green Borough Council (Superannuation) Act 1906 and the Shoreditch

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A.D. 1930. — and other Metropolitan Borough Councils (Superannuation) Act 1922 provision was made for the establishment by the councils of the metropolitan boroughs of Stepney Bethnal Green Shoreditch Bermondsey Finsbury Greenwich Hammersmith Southwark and Stoke Newington respectively of superannuation funds for the benefit of officers and servants of those councils and it is expedient that the said Acts should be amended as provided by this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas plans showing the lands which may be acquired or used compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the clerk of the peace for the county of London and are in this Act respectively referred to as the deposited plans and book of reference:

And whereas in relation to the promotion of the Bill for this Act the Council (as respects the appropriate provisions of the said Bill) have complied with the requirements of the Borough Funds Act 1872 so far as that Act applies to county councils under the provisions of the Local Government Act 1888 as extended by the County Councils (Bills in Parliament) Act 1903 and the councils of the metropolitan boroughs of Stepney and Bethnal Green (as respects the provisions of the said Bill relating exclusively to those councils respectively) have complied with the requirements of the Borough Funds Acts 1872 and 1903:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

INTRODUCTORY.

Short title.

1. This Act may be cited as the London County Council (General Powers) Act 1930.

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2. This Act is divided into Parts as follows :— A.D. 1930,

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|------|--|----------------------------|
| Part | I.—Introductory. | Act divided
into Parts. |
| Part | II.—Acquisition of land by the Council. | |
| Part | III.—Control of public boxing. | |
| Part | IV.—Clerk of the peace and staff of the
standing joint committee. | |
| Part | V.—Amendment of Stepney Borough
Council (Superannuation) Act
1905. | |
| Part | VI.—Amendment of Bethnal Green
Borough Council (Superannua-
tion) Act 1906. | |
| Part | VII.—Amendment of Shoreditch and
other Metropolitan Borough
Councils (Superannuation) Act
1922. | |
| Part | VIII.—Extensions of time. | |
| Part | IX.—Miscellaneous. | |

3.—(1) In this Act unless the subject or context otherwise requires— Interpretation.

- “ The Council ” means the London County Council;
- “ The county ” means the administrative county of London;
- “ The Bermondsey Council ” means the council of the metropolitan borough of Bermondsey;
- “ The Bethnal Green Council ” means the council of the metropolitan borough of Bethnal Green;
- “ The Finsbury Council ” means the council of the metropolitan borough of Finsbury;
- “ The Greenwich Council ” means the council of the metropolitan borough of Greenwich;
- “ The Hammersmith Council ” means the council of the metropolitan borough of Hammersmith;
- “ The Shoreditch Council ” means the council of the metropolitan borough of Shoreditch;
- “ The Southwark Council ” means the council of the metropolitan borough of Southwark;
- “ The Stepney Council ” means the council of the metropolitan borough of Stepney;

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“The Stoke Newington Council” means the council of the metropolitan borough of Stoke Newington;

“The Woolwich Council” means the council of the metropolitan borough of Woolwich;

“The Leyton Corporation” means the mayor aldermen and burgesses of the borough of Leyton;

“Borough council” means any metropolitan borough council;

“The Lands Clauses Acts” means those Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919; and

“The arbitrator” means the arbitrator to whom any question of disputed compensation may be referred under the provisions of this Act.

(2) Terms to which meanings are assigned by enactments incorporated with or applied by this Act or which have therein special meanings have in and for the purposes of this Act the same respective meanings.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II.

ACQUISITION OF LAND BY THE COUNCIL.

Incorporation of
Lands
Clauses
Acts.

4.—(1) The Lands Clauses Acts (so far as the same are applicable for the purposes of and are not inconsistent with or varied by this Part of this Act) are hereby incorporated with and form part of this Part of this Act with the following exceptions and modification:—

(a) Sections 127 and 133 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Part of this Act;

(b) The bond required by section 85 of the said Act of 1845 shall be under the seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section.

(2) This Part of this Act shall be deemed to be the special Act within the meaning and for the purposes of the Lands Clauses Acts as incorporated with this Part of this Act.

5.—(1) Subject to the provisions of this Part of this Act the Council may enter upon take and use all or any of the lands in the county which are hereinafter mentioned and are shown on the deposited plans and described in the deposited book of reference (that is to say):—

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 Power to
 Council to
 acquire and
 let certain
 lands.

(a) Premises in the metropolitan borough of Battersea known as the Priory (No. 28) and Nos. 30 32 and 34 High Street and land in the rear thereof such premises and land being bounded on the north and north-east partly by High Street and partly by other premises abutting on High Street on the east by the Sir Walter St. John's Schools on the south by St. John's College Battersea and on the west partly by the Victoria Granaries partly by St. John's College Battersea and partly by other premises abutting on High Street and Battersea Square;

(b) Lands and premises in the metropolitan borough of Camberwell known as Nos. 99 101 and 103 Denmark Hill and Nos. 2 4 6 8 10 and 12 De Crespigny Park.

(2) The Council may lease or grant the use of the premises and lands (a) described in subsection (1) of this section when acquired by them under the powers of this section to the governors of the Sir Walter St. John's Schools for the purposes of higher education on such terms and conditions as the Council think fit.

(3) The Council may hold and use for purposes of the Lunacy Acts 1890 to 1922 or for any purposes ancillary thereto the lands and premises (b) described in subsection (1) of this section when acquired by them under the powers of this section.

6. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Part of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes mentioned in this Part of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Power to
 certain
 persons to
 grant
 easements
 &c. by
 agreement.

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Correction
of errors in
deposited
plans and
book of
reference.

7. If there is any omission mis-statement or wrong description of any lands referred to in this Part of this Act or of the owners lessees or occupiers of any such lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to a metropolitan police magistrate for the correction thereof and if it appears to the magistrate that the omission mis-statement or wrong description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of London and shall be kept by such clerk of the peace with the other documents to which it relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Council may take the lands in accordance with such certificate.

Power to
Council to
enter upon
property for
survey and
valuation.

8. The Council and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk of the Council may at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into any lands and buildings by this Part of this Act authorised to be taken and used for the purpose of surveying and valuing the same without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Compen-
sation
payable by
Council in
case of
recently
created
interest.

9. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Part of this Act the following provisions shall apply and have effect (that is to say):—

- (1) The arbitrator shall not take into account any building erected or any improvement or alteration made or any interest in land created after the twentieth day of November one thousand nine hundred and twenty-nine and before the date of the passing of this Act if in the opinion of the arbitrator the erection of the building or

the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Part of this Act : A.D. 1930.

- (2) Subject as is hereinafter in this section provided the arbitrator shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the arbitrator materially enhances the value of such premises; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act :

- (3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Part of this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Part of this Act gives notice in writing to the Council of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Council do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(a) paragraph (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

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(b) paragraph (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said twentieth day of November one thousand nine hundred and twenty-nine and before the date of the passing of this Act:

- (4) The Council shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Part of this Act.

Extinguish-
ment of
private
rights of
way.

10. All private rights of way over any lands which shall under the powers of this Part of this Act be acquired compulsorily by the Council shall as from the date of such acquisition be extinguished. Provided that the Council shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Leasing and
exchange of
lands.

11.—(1) The Council may grant leases of or let for a term of years or from year to year or for any shorter period all or any lands and buildings or structures thereon acquired by them for the purposes mentioned in this Part of this Act until the said lands and buildings or structures are required for those purposes and the Council may exchange all or any lands buildings or structures so acquired and not required for the said purposes.

(2) The Council may execute and do any deed act or thing requisite or proper for effectuating any such leasing letting or exchange.

Sale of
ground
rents.

12. The Council may sell and dispose of the ground rents to be reserved by any leases or agreed to be reserved by any agreements for leases of any lands acquired by them under this Part of this Act and not required for the purposes thereof and also the fee simple in reversion in such lands and in the buildings or structures thereon either together or in parcels and either by public auction or by private contract for such sum or sums of money as

the Council think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at all times erected and built thereon and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Council think fit and as regards any stipulations or provisions which may be contained in any conveyance under this enactment the same may at all times thereafter be enforced by the Council for the benefit of the Council or any party entitled to other property adjoining or held under title derived from the Council.

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13. The Council may if they think it expedient so to do sell and dispose of any lands acquired by them under the powers of this Part of this Act and not required for the purposes thereof without having previously granted or agreed to grant any lease thereof for such sum or sums of money as the Council think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at all times erected and built thereon and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Council think fit.

Council
may sell
land in first
instance
without
having
previously
granted a
lease
thereof.

14. The receipt of the Council or of any person duly authorised by the Council for any purchase money rent or money payable to the Council by virtue of this Part of this Act shall be a sufficient and effectual discharge for the money in such receipt expressed or acknowledged to be received and the person to whom the receipt is given shall not afterwards be answerable or accountable for the mis-application or non-application of the money in such receipt expressed or acknowledged to be received.

Receipt of
Council to
be effectual
discharge.

15. The Council may subject to the provisions of this Part of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands or property abutting on any portion of the lands which the Council may acquire under the powers of this Part of this Act with respect to the sale by the Council to such person of any such last-mentioned lands for such consideration as may be agreed upon between the Council and such person and the Council may accept as satisfaction of the whole or any part of such consideration the grant by such person of any other

Power to
Council
to make
agreements
with owners
of property
&c.

A.D. 1930. — lands or property required by the Council for the purposes mentioned in this Part of this Act.

Limitation
of time for
purchase of
lands.

16. The powers of the Council for the compulsory purchase of lands under this Part of this Act shall cease on the first day of October one thousand nine hundred and thirty-three.

PART III.

CONTROL OF PUBLIC BOXING.

Control of
public
boxing.

17.—(1) The enactments specified in subsection (2) of this section and (with the exception of section 12 of the Metropolis Management and Building Acts Amendment Act 1878) all other enactments relating to premises kept or used for public dancing music or other public entertainment of the like kind or to licences for keeping or using premises for such purposes shall in their application to the county extend and apply to premises kept or used for public boxing contests exhibitions or displays and to licences for keeping or using premises for such purposes as if such contests exhibitions displays or licences had been therein referred to in addition to such entertainments or licences as are referred to in the said enactments Provided that as respects any premises to be kept open both for the purpose of public boxing contests exhibitions or displays and for any other purpose nothing in this section shall affect the operation of the said section 12 in relation to the keeping open of such premises for such other purpose.

(2) The specified enactments referred to in subsection (1) of this section are the following:—

The Disorderly Houses Act 1751—

Section 2 (Unlicensed places of public entertainment deemed disorderly houses Constables may enter and seize all persons found therein Person keeping the same to forfeit 100%);

Section 3 (Licensed places to have an inscription over them and not be open before five in the evening On breach of either of the said conditions the licence to be revoked).

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The Public Entertainments Act 1875—

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Section 1 (Amendment of section 3 of 25 Geo.
2. c. 36).

The Metropolis Management and Building Acts
Amendment Act 1878—

Section 13 (Provisional licence for new pre-
mises);

Section 21 (Power for architect and persons
authorised by Board and district
surveyor to enter and inspect
theatres music halls buildings
and works).

The Metropolitan Board of Works (Various Powers)
Act 1882—

Section 45 (Board may require means of exit
from theatres &c. to be kept
open).

The London County Council (General Powers) Act
1915—

Section 14 (Provisions with respect to music
and dancing licences);

Section 16 (Penalties for offences in respect of
licences for dancing &c.).

The London County Council (General Powers) Act
1923—

Section 16 (Council may vary conditions at-
tached to licences for stage plays
&c.).

The London County Council (General Powers) Act
1924—

Section 29 (Further powers with reference to
places of public entertainment);

Section 30 (Power to extend hours of opening
of premises licensed for music
and dancing).

The Baths and Washhouses Act 1896—

Proviso (a) to section 2 (Amendment of 41 & 42
Vict. c. 14. s. 5);

Section 3 (Licence by London County Council).

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The Public Health Act 1925—

Subsection (4) of section 87 (Closing and use
when closed of swimming baths).

The Army Act—

Section 174A (Use of recreation rooms without
licence).

The Air Force Act—

Section 174A (Use of recreation rooms without
licence).

Power of
Council
to make
regulations
for protec-
tion from
fire of
premises
used for
public
boxing.

18.—(1) The Council may make such regulations as they deem expedient with respect to the requirements for the protection from fire of any premises within the county to be kept open for public boxing contests exhibitions or displays under the authority of licences by the Council under this Part of this Act and may by such regulations prescribe the requirements as to position and structure of such premises which may in the opinion of the Council be necessary for the protection of all persons who frequent the same against danger from fire which may arise therein or in the neighbourhood thereof but the Council may in any special case dispense with or modify such regulations or may annex thereto conditions if they deem it necessary or expedient so to do.

(2) The Council shall after making the regulations cause the same to be printed with the date thereof and a print thereof shall be kept at the County Hall and all persons may at all reasonable times inspect such copy without payment and the Council shall cause to be delivered a printed copy of all regulations for the time being in force to every person applying for the same on payment by such person of any sum not exceeding five shillings for every such copy.

(3) A printed copy of the regulations dated and authenticated by the Council shall be conclusive evidence of the existence and of the due making of the same in all proceedings under the same.

(4) From and after the making of the regulations it shall not be lawful for any person to have or keep open any premises for the purposes aforesaid unless and until the Council grant to such person a certificate in writing under the hand of the clerk of the Council

to the effect that the premises are in accordance with the regulations made by the Council in pursuance of the provisions of this section in so far as those regulations are applicable to the premises and with the conditions (if any) annexed to such regulations by the Council. A.D. 1930.

(5) In case any premises are opened or kept open by any person for any of the purposes aforesaid contrary to the provisions of this section such person shall be liable to a penalty not exceeding fifty pounds for every day on which the premises are so kept open as aforesaid.

(6) The Metropolis Management and Building Acts Amendment Act 1878 shall be read and have effect as if there were included in that Act immediately after section 12 thereof provisions to the like effect as the provisions of this section.

19. Notwithstanding anything in section 2 of the Disorderly Houses Act 1751 there shall be paid to the Council in respect of the grant of a licence under that section to keep or use any house room garden or other place for public boxing contests exhibitions or displays such fee (not exceeding five shillings for each calendar month or part thereof for which the licence is granted) as the Council shall determine. Licence fees for public boxing.

20. Any enactment extended and applied by this Part of this Act which is one of the enactments referred to in subsection (1) of section 78 (Construction of Acts referring to business transferred) of the Local Government Act 1888 shall be construed for the purposes of that section as if it had been so extended and applied before the passing of the said Act of 1888. Construc- tion of section 78 of Local Govern- ment Act 1888.

21. The exemption conferred by section 4 (The theatres and other places licensed by the Crown or Lord Chamberlain excepted out of this Act) of the Disorderly Houses Act 1751 with reference to the theatres and performances and entertainments mentioned in that section shall not operate so as to enable those theatres or the premises in which such performances or entertainments are carried on to be kept or used for public boxing contests exhibitions or displays without a licence for that purpose granted by the Council. Construc- tion of section 4 of Disorderly Houses Act 1751.

22.—(1) Save as is provided by subsection (2) of this section nothing in this Part of this Act shall apply Saving for Royal Albert Hall.

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A.D. 1930. — to the building and premises known as the Royal Albert Hall.

(2) Section 45 of the Metropolitan Board of Works (Various Powers) Act 1882 in the application of that section to the said building and premises by virtue of section 8 (Royal Albert Hall to be subject to certain existing enactments) of the London County Council (Parks &c.) Act 1915 shall have effect as if the purposes mentioned in the said section 45 included the holding of public boxing contests exhibitions or displays therein.

Commence-
ment of
Part III
of Act.

23. This Part of this Act shall come into operation on the first day of January one thousand nine hundred and thirty-one.

Publication
of notice of
Part III of
Act.

24. The Council shall within three months after the passing of this Act give public notice of the foregoing provisions of this Part of this Act by advertisement in two or more daily newspapers circulating in the county and otherwise in such manner as they deem sufficient.

PART IV.

CLERK OF THE PEACE AND STAFF OF THE STANDING JOINT COMMITTEE.

Definition of
expressions
in Part IV
of Act.

25. For the purposes of this Part of this Act unless the context otherwise requires—

- (a) "Clerk of the peace" means clerk of the peace for the county of London;
- (b) "The existing clerk of the peace" means the holder of the office of clerk of the peace at the commencement of this Part of this Act;
- (c) "The clerk of the peace" means a clerk of the peace appointed after the commencement of this Part of this Act;
- (d) "Deputy clerk of the peace" means deputy clerk of the peace for the county of London;
- (e) "The standing joint committee" means the standing joint committee for the county of London appointed in pursuance of subsection (1) of section 30 of the Local Government Act 1888;
- (f) "The quarter sessions" means the quarter sessions of the county of London.

26. Notwithstanding anything in any other Act— A.D. 1930.

- (1) The existing clerk of the peace shall continue to be paid by salary and not by fees : Remuneration of existing clerk of the peace.
- (2) As from the commencement of this Part of this Act the rate of salary payable to the existing clerk of the peace immediately before that date shall be reduced to such extent as the Secretary of State on the recommendation of the standing joint committee may by order under his hand determine in consequence of the provisions of the section of this Act of which the marginal note is “Employment of officers and servants by standing joint committee” and such order may from time to time be varied by the Secretary of State by order under his hand upon receiving a recommendation from the standing joint committee signed by the chairman thereof that the amount of salary should be reconsidered :
- (3) The salary payable to the existing clerk of the peace as from the commencement of this Part of this Act shall not include any amount in respect of the remuneration of officers or servants to assist him in the performance of the duties of his office.

27. Notwithstanding anything in any other Act— Terms of appointment of clerk of the peace.

- (1) (a) The whole of the remuneration for the services of the clerk of the peace shall be paid by salary (and not by fees) the amount of which shall be fixed from time to time by the Secretary of State by order under his hand on receiving a recommendation of the standing joint committee signed by the chairman thereof that the amount of the salary should be considered or reconsidered ;
- (b) Such remuneration shall include remuneration for the performance by the clerk of the peace of the duties of clerk of the compensation authority under the Licensing (Consolidation) Act 1910 and of clerk of the standing joint committee if and so long as

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those offices are respectively held by the clerk of the peace. Provided that neither anything in this Part of this Act nor the holding by the clerk of the peace of the said offices or either of them shall relieve the compensation authority or the standing joint committee from any obligation to which if this Act had not been passed they would have been subject in regard to the payment of remuneration to their respective clerks for their services in those respective capacities but the provisions of subsection (2) of the section of this Act of which the marginal note is "Saving for other offices" shall apply to any such remuneration paid to the clerk of the peace:

- (2) The clerk of the peace shall cease to hold his office on attaining the age of sixty-five years or on becoming (in the opinion of the standing joint committee) before that age permanently incapable of discharging the duties of his office with efficiency by reason of infirmity of mind or body:

Provided that—

(a) if the standing joint committee pass a resolution to the effect that the vacation of his office on the ground of his attaining the age of sixty-five years would cause inconvenience to the public service he may continue in office for a further period not exceeding one year after he has attained the age of sixty-five years and so on for such further periods not exceeding in each case one year on the passing of similar resolutions;

(b) the standing joint committee may by resolution passed either before or after the clerk of the peace has attained the age of sixty years and has completed an aggregate period of service of forty years as clerk of the peace or deputy clerk of the peace or with the existing clerk of the peace or the clerk

of the peace or a clerk of the standing joint committee or with the standing joint committee or the quarter sessions require him to vacate his office at any time (not being less than three months after the giving to him of notice of such requirement) after he has attained the said age of sixty years and has completed the said period of service of forty years and the clerk of the peace shall comply with any such requirement: A.D. 1930.

- (3) Subject to the foregoing provisions of this section the standing joint committee may attach such terms and conditions (if any) to the appointment of the clerk of the peace as they may think fit and as may be approved by the Secretary of State:
- (4) If upon due examination the standing joint committee are satisfied that the clerk of the peace has been guilty of misconduct in the execution of his office or of such other misconduct as in their opinion renders him an unfit or improper person to hold the office of clerk of the peace the committee may dismiss him from his office and thereupon the office shall become vacant so however that any person so dismissed by order of the committee on the ground of misconduct otherwise than in the execution of his office may appeal to the High Court.

28.—(1) The officers and servants in the employment of the existing clerk of the peace at the commencement of this Part of this Act for the purpose of assisting him in the performance of his duties as clerk of the peace or as clerk of the standing joint committee or as clerk of the compensation authority shall as from that date cease to be officers or servants of the existing clerk of the peace and become and be officers and servants of the standing joint committee upon and subject to the like terms and conditions as those of their employment by the existing clerk of the peace immediately before the said date.

Employment of officers and servants by standing joint committee.

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(2) As from the commencement of this Part of this Act the standing joint committee (instead of the existing clerk of the peace or the clerk of the peace) shall appoint and employ such officers and servants as are requisite for the purpose of assisting the existing clerk of the peace or the clerk of the peace in the performance of the duties in respect of which remuneration is payable to him pursuant to this Part of this Act.

(3) The salaries or wages and emoluments of all such officers and servants as are referred to in this section shall be paid out of the county fund.

Certain
salaries &c.
to continue
to be pay-
able out of
county
fund.

29. The salaries of the existing clerk of the peace the clerk of the peace and the deputy clerk of the peace and the salaries or wages and emoluments of officers and servants employed by the standing joint committee otherwise than pursuant to the section of this Act of which the marginal note is "Employment of officers and servants by standing joint committee" shall continue to be payable out of the county fund.

Saving of
enactments
as to pay-
ment of
fees.

30. Nothing in this Part of this Act shall prejudice or affect the operation of section 30 (Regulations as to the payment of clerk's fees) of the Summary Jurisdiction Act 1848 but the fees to which the existing clerk of the peace or the clerk of the peace would have been entitled under that section or under any other enactment if he had been paid either in whole or in part by fees shall be paid by him to the Council who shall carry the same to the credit of the county fund.

Saving for
other
offices.

31.—(1) Nothing in this Part of this Act shall be deemed to prevent the existing clerk of the peace or the clerk of the peace from holding or continuing to hold with the approval of the standing joint committee any office other than that of clerk of the peace.

(2) Any remuneration fees or emoluments received by the clerk of the peace in respect of any such other office as aforesaid shall unless the standing joint committee with the approval of the Secretary of State otherwise determine be paid by him to the Council who shall carry the same to the credit of the county fund.

32. Any enactment relative to the appointment and tenure of office of clerks of the peace which is in force at the commencement of this Part of this Act and is inconsistent with the provisions of this Part of this Act shall not have effect in relation to the clerk of the peace.

A.D. 1930.

—
 Repeal of enactments as to clerk of the peace.

33. Subject to the provisions of this Part of this Act the existing clerk of the peace shall continue to hold his office by the same tenure as that by which he held it immediately before the commencement of this Part of this Act.

Saving for existing clerk of the peace.

34.—(1) The Council may on such terms and conditions as they deem expedient confer upon the clerk of the peace the deputy clerk of the peace and any officers or servants for the time being in the employment of the standing joint committee (whether in pursuance of this Part of this Act or otherwise) superannuation and other benefits similar to those conferred by any scheme made in pursuance of the provisions of Part IV (Superannuation &c.) of the London Council (General Powers) Act 1891.

Payment of superannuation to clerk of the peace and other officers.

(2) For the purpose of giving effect to the provisions of this section the Council may make such annual or other payments to or from the superannuation and provident fund established in pursuance of the provisions of the said Part IV as they may think fit and may make a scheme or amend any scheme so made or any existing scheme made under the last-mentioned provisions and those provisions shall subject to the provisions of this section in all respects apply to such new or amended scheme.

(3) The Council may if they think fit upon and subject to such terms and conditions as they may determine treat the service of any person as deputy clerk of the peace or with the existing clerk of the peace or the clerk of the peace or a clerk of the standing joint committee or with the standing joint committee or the quarter sessions as part of the service of that person in respect whereof the Council may confer superannuation and other benefits under this section.

35. This Part of this Act shall come into operation on the first day of January one thousand nine hundred and thirty-one which date is in this Part of this Act referred to as "the commencement of this Part of this Act."

Commencement of Part IV of Act.

A.D. 1930.

PART V.

AMENDMENT OF STEPNEY BOROUGH COUNCIL
(SUPERANNUATION) ACT 1905.

Amendment
of Stepney
Borough
Council
(Super-
annuation)
Act 1905.

36. The Stepney Borough Council (Superannuation) Act 1905 (in this Part of this Act referred to as "the Act of 1905") shall be read and construed subject to the following amendments (that is to say):—

- (1) Subject to the provisions of this Part of this Act the following definitions shall be substituted for the definitions of "officer" and "servant" respectively in section 2 (Interpretation) of the Act of 1905 (namely):—

"Officer" means every person exclusively in the permanent service of the Stepney Council in an established capacity other than a servant;

"Servant" means every person exclusively in the employ of the Stepney Council and on the permanent staff thereof whose wages are paid weekly.

- (2) Section 5 (Reckoning service) of the Act of 1905 shall have effect as if there were added at the end thereof the following subsections:—

"(2) The whole or part of any period during which a person was in the service of the Council after attaining the age of eighteen years prior to his becoming an officer or servant as defined in section 2 of this Act may subject to the approval of the Council and on such terms as to the payment of contributions or the deduction from his salary or wages and emoluments of percentage or other amounts (in addition to the percentage amount to be contributed by him by deduction from his salary or wages and emoluments pursuant to section 11 of this Act) as may be determined by the actuary be aggregated and reckoned as part of his service for the purposes of this Act.

"(3) If an officer or servant accepts such terms as are referred to in subsection (2) of this section and those terms provide for the

deduction of additional percentage or other amounts from his salary or wages and emoluments the Council shall deduct such amounts. A.D. 1930.

“ (4) All contributions made and additional amounts deducted under the provisions of subsections (2) and (3) of this section shall be carried to the credit of and form part of the superannuation fund and shall be deemed to be a portion of the percentage amounts referred to in subsection (3) of section 14 of this Act.”

(3) Section 14 (Superannuation fund) of the Act of 1905 shall have effect subject to the following amendments or modifications (that is to say) :—

(i) There shall be substituted for paragraph (d) of subsection (1) of that section the following paragraph :—

“ (d) Such amounts (in such proportions as the Council may decide) out of the respective funds rates or revenues out of which the salaries or wages and emoluments of the officers and servants who are contributors to the superannuation fund are payable as may be required to meet any deficiency in the superannuation fund as in this Act provided.”

(ii) The words “ funds rates or revenues “ referred to in paragraph (d) of subsection (1) “ of this section ” shall be substituted for the words “ general rate ” in paragraph (e) of subsection (3) of that section.

37.—(1) Notwithstanding anything contained in section 16 (Saving for existing officers and servants) of the Act of 1905 if any officer or servant who in pursuance of the provisions of that section signified his intention not to avail himself of the provisions of that Act shall at any time within six months after the commencement of this Part of this Act signify in writing to the Stepney Council his desire to avail himself of the provisions thereof the Stepney Council may permit him to avail himself of those provisions on such terms as to the payment of contributions or the deduction of percentage amounts

Modification
of section 16
of Stepney
Borough
Council
(Super-
annuation)
Act 1905.

[Ch. clix.] *London County Council [20 & 21 GEO. 5.]
(General Powers) Act, 1930.*

A.D. 1930. — of his annual salary or wages and emoluments as may be determined by the actuary and if such officer or servant intimates in writing to the Stepney Council his acceptance of the said terms—

- (a) any contribution required by the said terms to be paid by such officer or servant shall be paid by him to the Stepney Council;
- (b) any percentage amounts required by the said terms to be deducted shall from time to time be deducted by the Stepney Council; and
- (c) the provisions of the Act of 1905 as amended by this Part of this Act shall apply to such officer or servant with such modifications as may be necessary to give effect to those terms.

(2) All contributions made and amounts deducted in accordance with the terms referred to in subsection (1) of this section shall be carried to the credit of and form part of the superannuation fund and shall be deemed to be a portion of the percentage amounts referred to in subsection (3) of section 14 (Superannuation fund) of the Act of 1905.

(3) The Superannuation (Metropolis) Act 1866 shall not apply to any officer or servant to whom the Act of 1905 as amended by this Part of this Act is applied in consequence of the operation of this section and the Poor Law Officers' Superannuation Act 1896 shall cease to apply to any such officer who at the commencement of this Part of this Act was subject to the provisions of that Act.

As to new entrants.

38. In the case of officers and servants appointed by the Stepney Council after the thirtieth day of September one thousand nine hundred and thirty the following provisions shall have effect (namely):—

- (1) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance the Stepney Council shall pay to his legal personal representatives out of the superannuation fund a sum equal to the amount of the contributions made by such officer or servant under the Act of 1905 as amended by this Act together with compound interest thereon calculated to the date of his

death at the rate of three per centum per annum with half-yearly rests on the thirty-first day of March and the thirtieth day of September in each year : A.D. 1930.

- (2) In the event of an officer or servant dying after he has become entitled to a superannuation allowance and before he has received by way of superannuation allowance an amount equal in the aggregate to the amount of his contributions under the Act of 1905 as amended by this Act together with compound interest thereon calculated to the date of his retirement at the rate of three per centum per annum with half-yearly rests the Stepney Council shall pay to his legal personal representatives out of the superannuation fund the difference between the total amount which such contributor has received by way of superannuation allowance and the aggregate amount of his contributions together with compound interest thereon at the rate and calculated as aforesaid up to the date of his retirement :
- (3) Notwithstanding anything contained in section 12 (Scale of contributions) of the Act of 1905 the percentage amounts to be deducted for the purposes of the Act of 1905 as amended by this Act shall be as respects officers five per centum and as respects servants three and a half per centum of the annual salary or wages and emoluments.

39. In this Part of this Act the expression “ the *actuary* ” means an actuary appointed by the Stepney Council being a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland. Definition of actuary.

40. Notwithstanding anything contained in this Part of this Act all persons who at the date of the commencement of this Part of this Act are contributors to the superannuation fund or are in receipt of superannuation allowances out of that fund shall for all purposes of the Act of 1905 or of this Act or of the Act of 1905 as amended by this Act be deemed to be or at the respective dates of their retirement from the service of the Stepney Council to have been officers or servants within the meaning Saving for certain employees.

[Ch. clix.] *London County Council* [20 & 21 GEO. 5.]
(General Powers) Act, 1930.

A.D. 1930. — of section 2 (Interpretation) of the Act of 1905 as amended by this Act.

Commence-
ment and
construction
of Part V of
Act.

41. This Part of this Act shall come into operation on the first day of October one thousand nine hundred and thirty which date is in this Part of this Act referred to as "the commencement of this Part of this Act" and the Act of 1905 and this Part of this Act shall be read and construed as one Act and may be cited together as the Stepney Borough Council (Superannuation) Acts 1905 and 1930.

PART VI.

AMENDMENT OF BETHNAL GREEN BOROUGH COUNCIL
(SUPERANNUATION) ACT 1906.

Definition of
expressions
in Part VI
of Act.

42. In and for the purposes of this Act—

"the Act of 1906" means the Bethnal Green
Borough Council (Superannuation) Act 1906;
and

"the Act of 1930" means this Act.

Amendment
of Act of
1906.

43. The Act of 1906 shall be read and construed subject to the following amendments (that is to say):—

(1) Subject to the provisions of this Part of this Act section 2 (Interpretation) shall have effect as if the following definitions were substituted for the definitions of "officer" "servant" and "superannuation fund" respectively (namely):—

" 'Officer' means every person exclusively in the permanent service of the Council in an established capacity other than a servant;

" 'Servant' means every person exclusively in the employ of the Council and on the permanent staff thereof whose wages are paid weekly;

" 'Superannuation fund' means a fund to be established and administered by the Council in the manner described and provided in this Act."

(2) In the case of officers and servants appointed by the Bethnal Green Council after the thirtieth day of September one thousand nine hundred

and twenty-nine the following provisions shall be substituted for section 8 (Return in case of death) of the Act of 1906 :—

A.D. 1930.
—

“(i) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under this Act or under this Act as amended by the Act of 1930 the Council shall pay to his legal personal representatives out of the superannuation fund a sum equal to the amount of the contributions made by such officer or servant under this Act or under this Act as amended by the Act of 1930 together with compound interest thereon calculated to the date of his death at the rate of three per centum per annum with half-yearly rests on the thirty-first day of March and the thirtieth day of September in each year.

“(ii) In the event of an officer or servant dying after he has become entitled to a superannuation allowance under this Act or under this Act as amended by the Act of 1930 and before he has received by way of superannuation allowance an amount equal in the aggregate to the amount of his contributions under this Act or under this Act as amended by the Act of 1930 together with compound interest thereon calculated to the date of his retirement at the rate of three per centum per annum with half-yearly rests the Council shall pay to his legal personal representatives out of the superannuation fund the difference between the total amount which such contributor has received by way of superannuation allowance and the aggregate amount of his contributions under this Act or under this Act as amended by the Act of 1930 together with compound interest thereon at the rate and calculated as aforesaid up to the date of his retirement.”

- (3) Any officer or servant in the service of the Bethnal Green Council at the date of the passing of this Act who was in such service on the thirtieth day of September one thousand nine

[Ch. clix.] *London County Council [20 & 21 GEO. 5.]*
(General Powers) Act, 1930.

A.D. 1930.

hundred and twenty-nine may within three months after the passing of this Act signify in writing to the Bethnal Green Council his intention to adopt the provisions of subsection (2) of this section and in that event the said provisions shall extend and apply to such officer or servant accordingly (instead of the provisions of the said section 8) subject to his contributions to the superannuation fund being increased as from and including the first day of October one thousand nine hundred and twenty-nine by a percentage amount in accordance with the following scale (that is to say):—

(i) If on the thirtieth day of September one thousand nine hundred and twenty-nine the officer or servant has completed less than ten years' service with the Bethnal Green Council by an amount equal to one quarter of one per centum of the salary or wages and emoluments received or receivable by him from time to time after that date;

(ii) If on such date he has completed ten but less than twenty years of such service by an amount equal to one half of one per centum of such salary or wages and emoluments;

(iii) If on such date he has completed twenty years of such service by a sum equal to three-quarters of one per centum of such salary or wages and emoluments.

(4) (a) Notwithstanding anything contained in section 12 (Scale of contributions) of the Act of 1906 the percentage amounts to be deducted for the purposes of the Act of 1906 as amended by this Act shall in the case of officers and servants appointed by the Bethnal Green Council after the thirtieth day of September one thousand nine hundred and twenty-nine be as respects officers five per centum and as respects servants three and a half per centum of the annual salary or wages and emoluments;

(b) (i) If any such officer or servant as is referred to in the foregoing provisions of this subsection who was appointed by the Bethnal

Green Council before the date of the passing of this Act and has prior to that date paid or contributed for the purposes of the Act of 1906 a percentage amount of his salary or wages and emoluments which is less than the percentage amount which he would have been liable to pay or contribute for the purposes of the Act of 1906 as amended by this Act if this Act had been in operation during the whole of his period of service with the Bethnal Green Council he shall if he is in such service at the date of the passing of this Act be liable to pay for the purposes of the Act of 1906 as amended by this Act a sum equal to the difference between the total amount which he would have been liable to pay or contribute if this Act had been in operation during the whole of his period of service with the Bethnal Green Council and the total amount paid or contributed by him for the purposes of the Act of 1906 prior to the passing of this Act;

(ii) Any sum payable under sub-paragraph (i) of this paragraph shall be paid in such instalments and at such times as may be determined by the Bethnal Green Council.

44. Section 14 (Superannuation fund) of the Act of 1906 is hereby repealed and subject to the provisions of the section of this Act of which the marginal note is "Actuarial investigation" the following provisions shall have effect in lieu of the said section 14 :—

"(1) The Council shall establish and administer a superannuation fund to which shall be carried and credited—

(a) the amounts standing to the credit of the superannuation fund established pursuant to this Act;

(b) all contributions of officers and servants deducted or paid pursuant to this Act or this Act as amended by the Act of 1930;

(c) a sum (in this Act and the Act of 1930 referred to as 'the equivalent contribution') to be raised annually equal to the total

A.D. 1930.

amount for each year of the contributions referred to in the last foregoing paragraph;

(d) all dividends and interest arising out of the investment of the superannuation fund or any part thereof;

(e) for a period of forty years commencing on the first day of April one thousand nine hundred and twenty-nine an annual sum of eight thousand nine hundred and twenty-four pounds (to be raised in and by the general rate) in respect of the deficiency of the superannuation fund on the thirty-first day of March one thousand nine hundred and twenty-nine;

(f) such further sums (if any) to be raised in and by the general rate as the Council may become liable to contribute under the provisions of the section of the Act of 1930 of which the marginal note is 'Actuarial investigation.'

(2) The equivalent contribution shall be made out of the same respective funds rates and revenues as those out of which are payable the salaries or wages and emoluments from or in respect of which the deductions or payments referred to in paragraph (b) of subsection (1) of this section are made.

(3) The following shall be charged upon the superannuation fund (namely):—

(a) superannuation allowances made in pursuance of this Act or of this Act as amended by the Act of 1930; and

(b) contributions (including compound interest thereon) or parts of contributions returned or paid in pursuance of this Act or of this Act as amended by the Act of 1930."

Actuarial
investiga-
tion.

45.—(1) Once at least in every five years the condition of the superannuation fund referred to in the section of this Act of which the marginal note is "Superannuation fund" shall be submitted by the Bethnal Green Council to an actuary being a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland who shall consider the same and shall make an

actuarial valuation of the fund and on the basis of such valuation shall after having regard to any sums to be thereafter carried and credited to the fund under the provisions of the section of this Act of which the marginal note is "Superannuation fund" and to the then existing and prospective liabilities of the superannuation fund certify— A.D. 1930.

- (i) the further annual sums (if any) which should be carried and credited to the fund during a period not exceeding forty years from the date of such valuation so that the superannuation fund shall be solvent; or
- (ii) the amount of the surplus (if any) which could be disposed of without affecting the solvency of the superannuation fund; and
- (iii) the amounts (if any) by which the percentage amounts to be deducted under the provisions of section 12 (Scale of contributions) of the Act of 1906 as amended by this Act should be increased or reduced as respects persons becoming contributors after the date of such valuation in order to maintain an equality of value between the amounts to be contributed by and in respect of such persons and the amount of benefit to which such persons will become entitled.

(2) (a) If on any such valuation the actuary certifies that any such further annual sums should be carried and credited to the superannuation fund the Bethnal Green Council shall annually during such period as shall be so certified contribute such sums to the fund.

(b) If on any such valuation the actuary certifies that there is a surplus which could be disposed of without affecting the solvency of the fund the surplus shall be disposed of in accordance with the following provisions (that is to say) :—

- (i) If the amount of the surplus is less than the amount which would be necessary to liquidate the future liability of the Bethnal Green Council at the date of the valuation to raise in and by the general rate the annual sums (other than any portion of the equivalent contribution) referred to in the section of this Act of which the

A.D. 1930.

marginal note is "Superannuation fund" and in paragraph (i) of subsection (1) of this section the surplus shall be disposed of by way of an appropriate reduction of the amount of such annual sums;

- (ii) If the amount of the surplus is equal to or exceeds the amount which would be necessary to liquidate such future liability the obligation of the Bethnal Green Council at the date of the valuation to raise the annual sums referred to in the last preceding paragraph (i) shall cease and any balance of the amount of the excess beyond the amount necessary to liquidate such future liability shall be disposed of by reducing the equivalent contribution by an equal annual amount over a term not exceeding forty years from the date of the valuation.

(3) On receipt of a certificate by the actuary given under paragraph (iii) of subsection (1) of this section the Bethnal Green Council may submit to the Minister of Health a scheme for such increase or decrease as the case may require to be applied in equal proportions as between the Bethnal Green Council and the persons referred to in that paragraph.

(4) If any such scheme is approved by the Minister of Health this Part of this Act shall have effect subject to the provisions of the scheme.

(5) The Bethnal Green Council shall within one month of the receipt by them of the actuary's report send a copy thereof to the Minister of Health and if within six months of the receipt by the said Minister of such report the Bethnal Green Council fail to submit a scheme under this section or to submit a scheme of which the Minister approves the Minister may himself make a scheme which shall have the same effect as a scheme submitted by the Bethnal Green Council and approved by him.

Saving for
certain
persons.

46. Notwithstanding anything contained in this Part of this Act all persons who at the date of the passing of this Act are contributors to the superannuation fund or are in receipt of superannuation allowances out of that fund shall for all purposes of the Act of 1906 or of this Act or of the Act of 1906 as amended by this Act be

deemed to be or at the respective dates of their retirement from the service of the Bethnal Green Council to have been officers or servants within the meaning of section 2 (Interpretation) of the Act of 1906 as amended by this Act. A.D. 1930.
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47. The Act of 1906 and this Part of this Act shall be read and construed as one Act and may be cited together as the Bethnal Green Borough Council (Superannuation) Acts 1906 and 1930. Construc-
tion of
Part VI
of Act.

PART VII.

AMENDMENT OF SHOREDITCH AND OTHER METROPOLITAN BOROUGH COUNCILS (SUPERANNUATION) ACT 1922.

48.—(1) Subsection (1) of section 4 (Title to superannuation allowances) of the Shoreditch and other Metropolitan Borough Councils (Superannuation) Act 1922 (in this Part of this Act referred to as “the Act of 1922”) shall have effect as if the following proviso were added thereto :— Amend-
ment of sec-
tion 4 (1) of
Shoreditch
and other
Metro-
politan
Borough
Councils
(Super-
annuation)
Act 1922.

“ Provided that any employee who has completed ten years’ service or aggregate service and in respect of permanent incapacity due to an injury receives under the Workmen’s Compensation Act 1925 as amended by any other Act or under any Act repealed by that Act or under any scheme made pursuant to any such Act compensation of a less amount than that of the superannuation allowance to which he would have been entitled under this section if such permanent incapacity had been due to any cause other than an injury for which he receives such compensation shall be entitled to receive out of the superannuation fund an annual allowance equal to the amount by which such superannuation allowance exceeds such compensation.”

49. The expression “superannuation allowance” or “superannuation allowances” shall for the purposes of the following sections of the Act of 1922 be deemed to include an annual allowance or annual allowances :— Meaning of
super-
annuation
allowances.

Section 9 (Return of contributions with interest in certain cases) except the proviso to that section;

[Ch. clix.] *London County Council* [20 & 21 GEO. 5.]
(General Powers) Act, 1930.

A.D. 1930.

Section 11 (Return of contributions in case of death);

Section 13 (Allowance not assignable);

Section 15 (Superannuation fund);

Section 22 (Arbitration);

Section 23 (Increase of allowance in special cases);
and

Section 24 (Gratuities).

Amendment
of section
11 (1) of
Act of 1922.

50. Subsection (1) of section 11 (Return of contributions in case of death) of the Act of 1922 shall have effect as if the following proviso were added thereto :—

“ Provided that if the sum payable under this subsection to the legal personal representatives of an employee of the Council who dies while in the service of the Council after completing five years of such service is less than the average annual amount of the salary or wages of such employee during the five years ending on the quarter day immediately preceding the date of his death the Council may pay as a gratuity out of the general rate and not out of the superannuation fund either to such representatives or to or for the benefit of the widow or dependants of the deceased employee such sum as they think fit not exceeding the amount by which the sum payable as aforesaid is less than the said average annual amount.”

Revised
scale of
super-
annuation
allowances.

51.—(1) In the case of an employee who after the passing of this Act enters the service of any council to which the Act of 1922 applies the following provisions shall be substituted for section 6 of that Act :—

“ The scale of superannuation allowances to be made to an employee under this Act shall be as follows (that is to say) :—

After ten years' service or aggregate service ten-eightieths of the average amount of his salary or wages during the five years ending on the quarter day which immediately precedes the day on which the employee ceases to hold his employment;

After eleven years' service or aggregate service eleven-eightieths of such average amount;

And so on up to a maximum after forty or more years' service or aggregate service of forty-eightieths of such average amount; A.D. 1930.

And in addition thereto (in each case) a lump sum equal to one-thirtieth of the said average amount of salary or wages multiplied by the number of completed years of service or aggregated service so however that such lump sum shall in no case exceed one and a half times such average amount of salary or wages."

(2) Any employee who at the passing of this Act is in the service of any council to which the Act of 1922 applies may within three months thereafter signify in writing to such council his intention to adopt the provisions of this section and in that event the said provisions shall extend and apply to such employee accordingly except that the amount of the lump sum payable to him in addition to his superannuation allowance shall be increased by one-half of one per centum in respect of each year of his service or aggregate service completed at the passing of this Act.

PART VIII.

EXTENSIONS OF TIME.

52. The time limited by—

- (a) the Mall Approach (Improvement) Act 1914 as extended by orders made by the Minister of Transport under the Special Acts (Extension of Time) Act 1915 as amended by the War Emergency Laws (Continuance) Act 1920 and further extended by the London County Council (General Powers) Act 1924 and the London County Council (General Powers) Act 1927 for the completion of the widenings described in and authorised by the said Act of 1914; and
- (b) the London County Council (Tramways and Improvements) Act 1920 as extended by the London County Council (General Powers) Act 1927 for the completion of the improvements described in and authorised by the said Act of 1920;

Extension of time for completion of street improvements.

is hereby further extended until the first day of October one thousand nine hundred and thirty-three.

[Ch. clix.] *London County Council [20 & 21 GEO. 5.]*
(General Powers) Act, 1930.

A.D. 1930.

Extension
of time for
compulsory
purchase of
lands.

53. The time limited by—

- (a) the London County Council (Tramways and Improvements) Act 1920 as extended by the London County Council (General Powers) Act 1923 the London County Council (General Powers) Act 1926 and the London County Council (Tramway Subway and Improvements) Act 1928 for the compulsory purchase of lands for the widenings at Cable Street and Brook Street in the metropolitan borough of Stepney described in and authorised by the said Act of 1920; and
- (b) the London County Council (Tramways and Improvements) Act 1925 as extended by the London County Council (Tramway Subway and Improvements) Act 1928 for the compulsory purchase of lands for the construction of the new street in the metropolitan borough of Lewisham and for the widenings at Bromley Road and Baring Road in the said metropolitan borough described in and authorised by the said Act of 1925; and
- (c) the London County Council (General Powers) Act 1925 as extended by the London County Council (Tramway Subway and Improvements) Act 1928 for the compulsory purchase of lands in the city of Westminster for the purpose of a widening of the Strand;

is hereby further extended until the first day of October one thousand nine hundred and thirty-two.

PART IX.

MISCELLANEOUS.

Offensive
businesses.

54.—(1) Any sanction of the Council under section 19 (Prohibition and regulation of establishing anew certain offensive businesses and byelaws as to offensive businesses) of the Public Health (London) Act 1891 (which section is in this section referred to as "section 19") to the establishment anew of any business to which section 19 applies may be given so as to authorise the carrying on of the business for a period specified in the sanction and for such extension (if any) thereof as may

be granted by the Council and any person carrying on the business after the expiration of the period so specified or any such extension thereof (as the case may be) shall be liable on summary conviction to a penalty not exceeding fifty pounds and to a penalty not exceeding fifty pounds for each day on which any offence is continued after conviction thereof. A.D. 1930.

(2) Any sanction of the Council under section 19 to the establishment anew of any business to which that section applies or to the enlargement of any premises on which any such business is for the time being carried on or any extension of period by the Council under subsection (1) of this section may be given or granted subject to such terms conditions and restrictions as the Council think fit.

(3) Where after the passing of this Act the Council give any such sanction or grant any such extension as aforesaid (whether with or without terms conditions or restrictions) and after such giving or granting any alteration occurs in the circumstances affecting the business to which such sanction or extension relates they may at any time after the occurrence of such alteration and from time to time after the occurrence of any further alteration in such circumstances by order or by endorsement on the order giving the sanction or on any document or instrument evidencing the grant of the extension do all or any of the following things—

- (a) impose terms conditions and restrictions in relation to any sanction so given or extension so granted without terms conditions or restrictions;
- (b) modify or waive any terms conditions or restrictions imposed under the powers of this section;
- (c) impose additional or substituted terms conditions and restrictions :

Provided that at least fourteen days before making or endorsing an order or other document or instrument under this subsection the Council—

- (i) may (if they deem it expedient) make public their intention so to do in the manner provided by subsection (3) of section 19 for making public an application for their sanction under that section; and

[Ch. clix.] *London County Council* [20 & 21 GEO. 5.]
(General Powers) Act, 1930.

A.D. 1930.

(ii) shall where application for such order or endorsement has not been made by the person carrying on the business to which such order is intended to relate give to such person notice of their said intention;

and the said subsection (3) (in appropriate cases) and subsection (7) of section 19 shall with the necessary modifications apply to the intended order or endorsement as if it were an order to which those subsections apply.

(4) In the event of any contravention of any term condition or restriction imposed or modified under this section the person for the time being carrying on the business in respect of which the sanction was given shall be liable on summary conviction to a penalty not exceeding fifty pounds and to a penalty not exceeding fifty pounds for each day on which any offence is continued after conviction thereof.

(5) The foregoing provisions of this section shall be read with and form part of section 19.

(6) Section 56 (As to consents to establishment of offensive businesses) of the London County Council (General Powers) Act 1927 is hereby repealed. Provided that any sanction given in pursuance of that section in which the period for carrying on a business is limited shall be deemed to have been given in pursuance of this section so as to permit of such period being extended by the Council.

Revenue
and ex-
penses of
tramways
undertaking
of Council.

55.—(1) All money received by the Council in respect of any year on account of the revenue of their tramways undertaking shall be carried to and form part of the revenue for that year of the county fund and all payments expenses or obligations made or incurred in respect of that undertaking shall be paid out of or borne by that fund.

(2) The Council may (if they think fit) apply money received by them on account of the revenue of the said undertaking in the construction renewal extension and improvement of works and conveniences or in the provision of reserve funds for the purposes of that undertaking.

(3) Nothing in this section shall relieve the Council from any statutory obligation existing at the passing of

this Act with reference to the keeping of separate accounts in respect of the said undertaking or impose on them any new obligation with reference thereto. A.D. 1930.
 —

(4) Any money carried to the county fund under subsection (1) of this section or applied in accordance with the provisions of subsection (2) of this section and all payments expenses or obligations paid out of or borne by the county fund under the said subsection (1) shall be allocated to the general county account or the special county account in accordance with the provisions of the Local Government Act 1888.

56. As from the fifth day of April one thousand nine hundred and thirty-one sections 3 4 and 5 of the Act 52 George III cap. 49 and sections 2 3 and 4 of the Act 2 & 3 William IV cap. 66 (which sections relate to the payment in respect of certain premises now or formerly in the occupation of the Crown of certain annual sums in lieu of or in relief of rates and the exemption of those premises from all rates and assessments) shall be and the same are hereby repealed but nothing in this section shall be construed as imposing upon the Crown any liability for rates and assessments in respect of any of the premises mentioned in the said Acts which are for the time being in the occupation of the Crown. Repeal of enactments relating to Old Custom House and other properties.

57.—(1) If at the passing of this Act the valuation list for the parish of the city of London made in the year one thousand nine hundred and thirty and coming into operation on the sixth day of April one thousand nine hundred and thirty-one has not been made and deposited pursuant to the Rating and Valuation (Metropolis) Acts 1869 to 1929 (in this section referred to as “ the Rating Acts ”) all the hereditaments and premises to which immediately before the passing of this Act the sections repealed by the section of this Act of which the marginal note is “ Repeal of enactments relating to Old Custom House and other properties ” applied (other than such (if any) of those hereditaments and premises as are at the date of the deposit of the said valuation list in the occupation of the Crown) and the gross net annual and rateable values of such hereditaments and premises shall be included in that list. Inclusion of lands in valuation list.

(2) If at the passing of this Act the valuation list referred to in subsection (1) of this section has been made

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(General Powers) Act, 1930.

A.D. 1930. and deposited pursuant to the Rating Acts the rating
— authority shall forthwith after the passing of this Act
make sign and deposit an additional valuation list in
the same form as the said valuation list and containing
all the hereditaments and premises to which immediately
before the passing of this Act the sections repealed by the
said section of this Act of which the marginal note is
“ Repeal of enactments relating to Old Custom House and
other properties ” applied (other than such (if any) of
those hereditaments and premises as are at the date of
the deposit of the said additional valuation list in the
occupation of the Crown) and the gross net annual and
rateable values of such hereditaments and premises.

(3) The same regulations shall be observed and the
same procedure shall be had in the case of the additional
valuation list referred to in subsection (2) of this section
as apply under the provisions of the Rating Acts to the
valuation lists made and deposited pursuant to those
Acts in the year one thousand nine hundred and thirty :

Provided that section 42 of the Valuation (Metropolis)
Act 1869 shall for the purposes of the said additional
valuation list apply as if paragraph (1) of that section
were omitted therefrom and as if for each of the respective
dates specified in the other paragraphs of that section
there were substituted a date to be ascertained by
extending each of those dates by the number of days
between the first day of June one thousand nine hundred
and thirty and the date of the making and deposit of the
said additional valuation list.

(4) The said additional valuation list as approved
by the assessment committee (and if altered on any
appeal under the Rating Acts to any sessions or a superior
court as so altered) shall notwithstanding that such
approval or any alteration on appeal may be given or
made on or after the sixth day of April one thousand
nine hundred and thirty-one come into force or be deemed
to have come into force as from and including that date
and shall for all purposes be added to and be deemed to
form part of the valuation list for the parish of the city
of London coming into force on that date.

Extension
of certain
powers
under

58. For the purpose of making widening or improv-
ing any streets roads or ways for facilitating the passage
and traffic between different parts of the county pursuant

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to section 144 of the Metropolis Management Act 1855 A.D. 1930.
the Council may exercise within the county the like powers
of acquiring lands compulsorily as are exerciseable by —
a metropolitan borough council in relation to the improve- Metropolitan
ment of the streets and public places in their borough by Paving
virtue of sections 80 to 96 of the Metropolitan Paving Act 1817 to
Act 1817 as modified by the Acquisition of Land (Assess- the Council.
ment of Compensation) Act 1919 and the provisions of
those sections as so modified shall apply to the Council
accordingly :

Provided that nothing in this section shall authorise
the compulsory acquisition of any land which at the time
of the proposed exercise of the powers of this section is
used or required to be used by any railway company for
the purposes of any railway or for any other authorised
purpose of their railway undertaking.

59. For the removal of doubts it is hereby declared Lighting
that the Council have and shall be deemed always to have of Thames
had power to light to such extent in such manner and by bridges by
such means as they deem expedient all or any of the Council.
bridges vested in them which span the river Thames and
also the approaches to those bridges.

60.—(1) In the case of any such person as is herein- Super-
after referred to the periods of service hereinafter men- annuation
tioned with reference to such persons respectively may if rights of
the Council by resolution passed at any time after the certain
passing of this Act so determine and upon and subject to persons in
such terms and conditions as the Council may impose Council's
be taken into account in relation to any enactment or service.
any scheme made under any enactment authorising the
Council to grant to all or any of their officers or servants
or the personal representatives of such officers or servants
superannuation allowances pensions gratuities or other
benefits for the purpose of qualification for or deter-
mination of the amount of any such superannuation
allowance pension gratuity or other benefit as last
aforesaid (that is to say):—

- (a) in the case of any person taken into the service
of the Council at any time after the twenty-
seventh day of March one thousand nine
hundred and twenty-nine and before the first
day of April one thousand nine hundred and
thirty in consequence of the devolution of duties

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upon the Council under the Local Government Act 1929 who immediately before the date when he entered the service of the Council was in the service of any other local authority or body—

(i) any period of service of that person with such other local authority or body; and

(ii) any period of previous service with any other local authority or body

which immediately before the date when he entered the service of the Council he was entitled to take into account for the purpose of qualifying for or determining the amount of a superannuation allowance pension or gratuity under any enactment or any scheme made under any enactment; and

(b) in the case of any person in the service of the Council at the date of the passing of this Act who immediately prior to the first day of July one thousand nine hundred and twenty-one was in the service of the Leyton Urban District Council in connection with the tramways undertaking of that council and who as on and from the last-mentioned date was employed by the Council the whole or part of the period of service of that person with the said district council.

(2) In any case in which the Council exercise the powers of this section—

(a) as respects any such person as is referred to in paragraph (a) of subsection (1) of this section the local authority or body in whose service such person was immediately before entering the service of the Council; and

(b) as respects any such person as is referred to in paragraph (b) of the said subsection (1) the Leyton Corporation (as the successors of the Leyton Urban District Council)

may if they think fit pay to the Council a sum not exceeding—

(i) in the case of a local authority or body (other than the Leyton Corporation) by whom the Local Government and other Officers' Superannuation Act 1922 (in this section referred to

as "the Act of 1922") has been adopted the A.D. 1930.
sum which would have been payable to the
Council in respect of the person entering their
service as transfer value under subsection (1)
of section 8 of the Act of 1922 if that Act had
been adopted by the Council;

(ii) in the case of a local authority or body by whom
the Act of 1922 has not been adopted or to
whom that Act does not apply the sum which
under subsection (2) of the said section 8
would have been payable to the Council by the
person entering their service in lieu of transfer
value if the Act of 1922 had been adopted by the
Council and such local authority or body were
a local authority as defined by that Act;

(iii) in the case of the Leyton Corporation the
estimated additional liability which would fall
upon the superannuation fund established by
the Council under and in pursuance of the
provisions of Part IV (Superannuation &c.) of
the London Council (General Powers) Act 1891
if the whole of the service with the Leyton
Urban District Council of the person entering
the service of the Council were taken into
account for the purposes referred to in sub-
section (1) of this section;

and in either of the cases referred to in paragraph (i) or
paragraph (ii) of this subsection as if any such period
of service as is referred to in sub-paragraph (ii) of
paragraph (a) of subsection (1) of this section had been
service with the local authority or body making the
payment.

(3) (a) Any sum paid to the Council pursuant
to subsection (2) of this section by a local authority
or body (other than the Leyton Corporation) who
have established a superannuation fund whether under
the Act of 1922 or under any other enactment shall
be paid out of that fund.

(b) Any sum paid to the Council pursuant to the
said subsection (2) by a local authority or body who
have not established a superannuation fund shall be
paid out of the fund or rate out of which the salary
or wages and emoluments of the officer or servant in

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A.D. 1930. — whose case service with that local authority or body is reckoned would have been payable if he had continued in the service of that local authority or body.

(c) Any sum paid to the Council pursuant to the said subsection (2) by the Leyton Corporation shall be paid out of the general rate fund of the Leyton Corporation or out of the tramways fund (if any) of the Leyton Corporation or partly out of the said general rate fund and partly out of the said tramways fund as the Leyton Corporation in their discretion may determine.

(d) All sums so paid to the Council shall be carried by them to the credit of such account or fund as they may determine.

Gratuities
to non-
pensionable
employees.

61.—(1) Subject to the provisions of this section it shall be lawful for the Council to grant a gratuity—

(a) to any person who may be disabled or injured in their service or may while in their service become incapacitated through age sickness or other infirmity; or

(b) to the family of any person who at the time of the death of the person was in the service of the Council;

in any case in which the powers and duties of the Council as to pensions or superannuation or of the Board of Education under the Teachers (Superannuation) Acts 1918 to 1925 do not or did not apply to such person and such person or any other person in respect of such person is not or was not at the time of the disablement or injury or death (as the case may be) in receipt of or entitled to compensation under the Workmen's Compensation Act 1925 or under any Act repealed by that Act or under any scheme made pursuant to any such Act Provided that no such gratuity shall be granted to or in respect of any person unless he has been for an aggregate period of twenty years—

(i) in the service of the Council; or

(ii) in the service of the Council and of any other body or person (hereinafter in this section referred to as a "previous employer") whose

powers duties or property have been or may be wholly or in part transferred to or vested in the Council or who own any undertaking for the time being worked by the Council. A.D. 1930.
—

(2) No period of service with a previous employer shall be taken into account for the purpose of granting a gratuity under this section unless the person to or in respect of whom a gratuity is proposed to be granted was in such service immediately before the transfer to or vesting in the Council (wholly or in part) of the powers duties or property of the previous employer or immediately before the commencement of the working by the Council of an undertaking of the previous employer (as the case may be).

(3) (a) Any gratuity under this section may be paid either in a lump sum or in the form of a weekly or other periodical allowance or in instalments of such amounts and at such times as the Council may determine but shall not exceed the equivalent of one week's salary or wages and emoluments (in this section referred to as "remuneration") for every complete year and a proportional part of one week's remuneration for any fractional part of a year comprised in the aggregate period of service of the person to or in respect of whom the gratuity is paid calculated on the average amount per week of the remuneration received by him during such period as the Council may in each case determine (not being less than one year nor more than five years) immediately preceding the date of his ceasing to be in the service of the Council or of his death (as the case may be) such average being taken over the number of weeks comprised in the period so determined in respect of which remuneration was received.

(b) For the purposes of this subsection any person whose remuneration is reduced or discontinued in consequence of and during his absence on leave shall be deemed whilst so absent to have received the remuneration to which he would have been entitled if he had continued to discharge the duties of his office or employment.

(4) Every gratuity paid to or in respect of any person under this section shall be paid out of the fund out of which the remuneration of that person or the part of such remuneration borne by the Council would

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A.D. 1930. — have been payable if he had continued in the service of the Council.

(5) (a) In any case in which the Council in exercising the powers of this section take into account a period of service with a previous employer such employer or the successor of that employer may pay to the Council in respect of such period of service as a contribution towards any gratuity granted under this section any sum not exceeding an amount which bears to the amount of that gratuity the same proportion as the said period bears to the aggregate of that period and of the period of service with the Council.

(b) Any sum paid to the Council under this subsection shall be paid out of such fund or rate of the party paying the said sum as that party may determine.

(c) All sums so paid to the Council shall be carried by them to the credit of such account or fund as they may determine.

(6) For the purposes of this section—

(a) any teacher technical assistant or clerical assistant employed in any educational institution or place of detention provided by the Council or employed wholly or in part at the expense of the Council in any such educational institution not so provided shall be deemed to be a person in the service of the Council;

(b) the service of an employee with a school-keeper in the employment of the late School Board for London or of the Council shall be deemed to be service with a previous employer;

(c) a person who owing to seasonal or other variations in the extent of the duties for which his services are required was employed intermittently by the Council or by a previous employer shall be deemed to have been in the service of the Council at the time of the occurrence of any such event as is mentioned in paragraph (a) or paragraph (b) of subsection (1) of this section or in the service of a previous employer at the time

of such transfer or vesting or such commencement of the working of an undertaking (as the case may be) as is referred to in subsection (2) of this section notwithstanding that at that time the person had ceased temporarily to be employed by the Council or by a previous employer;

(d) the expression "service" includes part-time service and the expression "family" includes—

(i) a widow or widower (as the case may be);

(ii) an adopted child within the meaning of the Adoption of Children Act 1926 adopted either by the deceased person or by his or her spouse or by both jointly;

(iii) a stepchild of the deceased person or of his or her spouse;

(iv) in relation to a man an illegitimate child (whether his or his wife's) who was living with him at the time of his death; and

(v) in relation to a woman an illegitimate child (whether hers or her husband's) who was living with her at the time of her death.

(7) Section 32 (Council may grant gratuities to temporary employees or their widows or families in certain cases) of the London County Council (General Powers) Act 1921 and so much of section 33 (Application to teachers of certain provisions of Act) of that Act as relates to the said section 32 thereof are hereby repealed.

62. Section 36 (Proportion of baths for the labouring classes) of the Baths and Washhouses Act 1846 and section 5 (Proportion of washing accommodation for labouring classes) of the Baths and Washhouses Act 1847 (which sections prescribe the minimum numbers of baths and washing tubs or troughs for the labouring classes in relation to the numbers of baths and washing tubs or troughs of any higher class in any building)

Amendment
 of 9 & 10
 Vict. c. 74.
 s. 36 and 10
 & 11 Vict.
 c. 61, s. 5.

A.D. 1930. — shall in the application of those Acts to metropolitan boroughs and metropolitan borough councils cease to have effect.

Appropriation of land by Greenwich Borough Council for a welfare centre.

63. Notwithstanding anything in the Disused Burial Grounds Act 1884 or any other Act the Greenwich Council may appropriate hold and use for the purposes of a welfare centre and the erection of buildings for those purposes the portion of land in the metropolitan borough of Greenwich shown by a blue colour on the plan marked "A" and signed in triplicate by the Right Honourable the Earl of Lytton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which plan copies have been deposited in the Committee and Private Bill Office of the House of Commons in the Parliament Office House of Lords and with the town clerk of the said metropolitan borough respectively).

Closing for burials of a portion of Plumstead churchyard.

64. The portion of Plumstead churchyard in the metropolitan borough of Woolwich delineated and coloured pink on the plan marked "B" and signed in triplicate by the Right Honourable the Earl of Lytton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (of which plan copies have been deposited in the Committee and Private Bill Office of the House of Commons in the Parliament Office House of Lords and with the town clerk of the said metropolitan borough respectively) shall be deemed to be a disused burial ground within the meaning of the Open Spaces Act 1906.

Authentication and service of notices &c.

65.—(1) Where any notice or other document under this Act or any enactment incorporated with or applied by this Act or any byelaw made under or by virtue thereof requires authentication by the Council or a borough council the signature of the clerk of the Council or any officer duly authorised by him or of the town clerk (as the case may be) shall be sufficient authentication.

(2) Notices and other documents required or authorised to be served or given by the Council or a borough council under this Act or any enactment incorporated with or applied by this Act or under any byelaw made under or by virtue thereof may be served by post or by delivering the same to or at the residence of the person to whom they are respectively addressed or where

addressed to the owner or occupier of premises by delivering the same or a true copy thereof to some person on the premises or if there is no person on the premises who can be so served by fixing the same on some conspicuous part of the premises : A.D. 1930.
—

Provided that—

- (a) any notice given under section 18 of the Lands Clauses Consolidation Act 1845 or under the provisions of any enactment applied to the Council by the section of this Act of which the marginal note is “Extension of “ certain powers under Metropolitan Paving “ Act 1817 to the Council ” shall if served by post be served by registered post ;
- (b) in the case of a company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at its registered office or at its principal office or place of business.

In proving service by post it shall be sufficient to prove that the notice or other document was properly addressed and put into the post.

(3) Any such notice as aforesaid which is required to be given to the owner or occupier of any premises may be addressed by the description of the “owner” or “occupier” of the premises (naming them) in respect of which the notice is given without further name or description.

66. Save as otherwise expressly provided all offences against this Act or any enactment incorporated with this Act and all fines forfeitures penalties costs charges and expenses imposed or recoverable thereunder may be prosecuted and recovered in a summary manner : Recovery of penalties &c.

Provided that costs charges and expenses except such as are recoverable along with a fine shall not be recovered as penalties but may be recovered summarily as civil debts.

67. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the Recovery of demands.

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A.D. 1930. — matter if the demand does not exceed the amount recoverable in that court in a personal action.

Penalties to be paid to authorities taking proceedings.

68. Notwithstanding anything contained in the Metropolitan Police Courts Act 1839 or in any other Act every penalty recovered under or in pursuance of this Act or any byelaw made under this Act shall be payable to the authority taking the proceedings leading to the recovery of the penalty.

Judges not disqualified.

69. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Saving for indictments.

70. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter which by or by virtue of this Act or any enactment incorporated with this Act is made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by or by virtue of this Act or any such incorporated enactment :

Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Money to be raised by Council on capital account.

71. The Council may expend on capital account for the purposes of Part II (Acquisition of land by the Council) of this Act such moneys as they think fit and may borrow or otherwise provide the money required for those purposes in accordance with the provisions of the London County Council (Finance Consolidation) Act 1912.

Crown rights.

72. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those commissioners on behalf of His Majesty first had and obtained for that purpose.

Payments under this Act.

73. All costs and expenses of the Council in the execution of this Act (except so far as they may be

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otherwise provided for by this Act) shall be defrayed as payments for general or special county purposes within the meaning of the Local Government Act 1888 as the Council may decide and the costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Council in like manner. Provided that so much of such last-mentioned costs charges and expenses as may be incurred in respect of or in connection with the provisions contained in (a) the section of this Act of which the marginal note is "Power to Council to acquire and let certain lands" (in so far as those provisions relate to the premises and land described in paragraph (a) of subsection (1) of that section) (b) Part V (Amendment of Stepney Borough Council (Superannuation) Act 1905) (c) Part VI (Amendment of Bethnal Green Borough Council (Superannuation) Act 1906) (d) Part VII (Amendment of Shoreditch and other Metropolitan Borough Councils (Superannuation) Act 1922) (e) the section of this Act of which the marginal note is "Appropriation of land by Greenwich Borough Council for a welfare centre" and (f) the section of this Act of which the marginal note is "Closing for burials of a portion of Plumstead churchyard" shall be paid as regards (a) by the Governors of the Sir Walter St. John's Schools as regards (b) by the Stepney Council as regards (c) by the Bethnal Green Council as regards (d) by the Shoreditch Council the Bermondsey Council the Finsbury Council the Greenwich Council the Hammer-smith Council the Southwark Council and the Stoke Newington Council in equal shares as regards (e) by the Greenwich Council and as regards (f) by the Woolwich Council and such payment shall in the case of each of the said councils be made out of the general rate authorised to be levied by those councils respectively.

A.D. 1930.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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